

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 12
Honorable Nahal Iravani-Sani, Presiding**

Courtroom Clerk, Ryan Nguyen
191 North First Street, San Jose, CA 95113
Telephone: (408) 882-2230

DATE: 07/31/2026 TIME: 9:00 A.M. and 9:01 A.M.

LINE 9	25CV467980	Philip A. Robb, as Trustee of The Marchasin Family Trust et al. vs Carol Cedar- Applebaum, an individual et al	MOTION TO DETERMINE VALUE AND SEND BUYOUT NOTICE Please Ctrl Click (or scroll down to) Line 9
9:01	CASE #	CASE TITLE	RULING
LINE 1	24CV431871	Pedro Ortiz vs Roselia Patino	Hearing: Order of Examination Roselia Tinoco Patino is ordered to appear personally to furnish information to aid in enforcement of a money judgment
LINES 2-3	21CV392455	Advoque Safeguard LLC et al vs Benham Pourdeyhimi et al	Pro Hac Vice Counsel Applications of counsel to appear <i>Pro Hac Vice</i> for Defendants Purdeyhimi and Leaders in Innovation and Nonwovens Commercialization, LLC. No objection filed. Good cause appearing, the applications are GRANTED. The Court will sign the e-filed Proposed Orders

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Calendar Line 1**Case Name:** *Ku and Kuo vs. Harald Herchen***Case No.:** 21CV376210**PLAINTIFF'S MOTION FOR TURNOVER ORDER**

Plaintiffs, as judgment creditors, move for a turnover order pursuant to Code of Civil Procedure sections 699.040, 708.120(c), and 708.205(a), seeking an order directing Attorney Charles Smith, counsel for Defendant in a pending criminal proceeding, to apply funds held in his client trust account toward satisfaction of Plaintiffs' judgment.

The motion is GRANTED IN PART and DENIED IN PART WITHOUT PREJUDICE.

Background and Applicable Law

Plaintiffs obtained a judgment against Defendant in a wrongful death action in the approximate amount of \$23 million. Plaintiffs seek enforcement against funds allegedly held by Attorney Charles J. Smith ("Mr. Smith") on behalf of Defendant.

The Enforcement of Judgments Law provides judgment creditors with broad remedies to reach property of a judgment debtor. A court may order a third person who possesses or controls property in which the judgment debtor has an interest to apply that property toward satisfaction of the judgment. (Code Civ. Proc., §§ 708.120, 708.205.) Funds belonging to a judgment debtor are not rendered immune from enforcement merely because they are held by a third person or maintained in an attorney trust account.

The relevant inquiry is whether Defendant presently has an interest in the funds and whether any legal basis exists preventing their application toward satisfaction of the judgment.

Funds Held in Attorney Trust Account

Mr. Smith does not dispute that he presently holds approximately \$200,000 in his client trust account belonging to Defendant. Mr. Smith does not assert that these funds are his property, does not claim that the funds constitute earned attorney fees, and does not assert an attorney lien or other ownership interest in the funds. Rather, Mr. Smith declares that, as an officer of the court, he agreed not to remove, transfer, disburse, or use the \$200,000 and has honored that commitment. Mr. Smith further states that he has not and will not make a unilateral decision to draw upon the funds to finance Defendant's criminal defense but seeks to preserve the ability to request court approval to do so if necessary.

Based on this record, the Court finds that Defendant retains an ownership interest in the \$200,000 and that the funds are within the scope of property subject to judgment enforcement.

Sixth Amendment Considerations